Docusign Envelope ID: 6975E7F1-EE29-4BC0-BD37-94311BFF4F25

Research Data Licence Agreement

Date: June 2, 2025 | 10:59 PM BST

SSBN Limited

and

University of Toronto

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THIS AGREEMENT is dated June 2, 2025 (the "**Effective Date**")

PARTIES

(1) **SSBN LIMITED** (trading as Fathom) incorporated and registered in England and Wales with company number 08777822 whose registered office is 2nd Floor, Clifton Heights, Triangle West, Clifton, Bristol, BS8 1EJ ("**Fathom**"); and

(2) University of Toronto incorporated and registered in Canada with company number N/A whose registered office is at 27 King's College Circle Toronto, Ontario M5S 1A1 Canada (the "**Customer**").

BACKGROUND

(A) Fathom intends to supply the Customer with specific Data.

(B) The Customer wishes to use Fathom Data for academic research purposes only.

(C) The parties have agreed to comply with this agreement in connection with the disclosure and use of Confidential Information and Data.

AGREED TERMS

1. Interpretation

1.1 Definitions:

Business Day: a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.

Customer Users: means an academic employee of the Customer and any post-graduates who are authorized by the Customer to access and use the Data (wholly or in part), using a unique identifier provided by Fathom. This excludes undergraduate students unless explicitly authorized by Fathom.

Data: the data or information provided by Fathom to the Customer, as detailed in Schedule 1.

1.2 Interpretation.

(a) A reference to a statute or statutory provision is a reference to it as amended or re-enacted. A reference to a statute or statutory provision includes any subordinate legislation made under that statute or statutory provision, as amended or re-enacted.

(b) Any words following the terms **including**, **include**, **in particular**, **for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.

(c) A reference to **writing** or **written** includes email.

(d) A reference to a **company** shall include any company, corporation or other body corporate, wherever and however incorporated or established.

(e) Any obligation on a party not to do something includes an obligation not to allow that thing to be done.

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2. License to Customer

2.1 In consideration of the mutual obligations of the parties under this agreement [and payment of the sum of £ 670.00] Fathom hereby grants the Customer a personal, non-transferable, revocable, non-exclusive, non-sublicensable license (**"the License"**) to allow the Customer Users to use the Data solely for academic research purposes.

2.2 Any amounts payable under clause 2.1 shall be paid within 30 days of the date of invoice. Late payment shall attract interest at an annual rate of 10%, calculated on a daily basis.

2.3 Fathom shall not provide support in relation to the Data or this agreement. If such support is required it is available at additional cost.

3. Customer restrictions

3.1 The Customer shall:

3.1.1 limit access to the Data to the Customer Users;

3.1.2 keep any download links for the Data confidential;

3.1.3 store the Data securely;

3.1.4 only use the Data for academic research purposes;

3.1.5 not use the Data for any purpose contrary to any law or regulation or any regulatory code, guidance or request by Fathom;

3.1.6 not extract, reutilise, use, exploit, copy or store the Data for any purpose not expressly permitted by this agreement; in particular the Customer acknowledges that it may not use the Data for commercial gain;

3.1.7 not copy, modify, decompile, reverse engineer or create derivative works from the Data, except for research purposes within academia;

3.1.8 not share, redistribute or disseminate the Data to third parties without explicit written consent from Fathom;

3.1.9 not share, redistribute or disseminate any derivative works from the Data without explicit written consent from Fathom;

3.1.10 not do anything which may damage the reputation of Fathom or the Data;

3.1.11 not publish any works (whether academic research or otherwise) which feature, are based upon or refer to the Data or works derived from the Data without the prior written consent of Fathom;

3.1.12 share with Fathom all findings of the academic research carried out pursuant to this agreement;

3.1.13 acknowledge Fathom in all academic publication(s) and presentation(s) in which the Data are used or referred to;

3.1.14 on termination, delete all Data at the end of the project and confirm to Fathom in writing that the data has been deleted from all systems;

3.1.15 treat all Fathom Data as confidential information and not to be disclosed to any third party without explicit written consent from Fathom.

3.2 Fathom shall be entitled to refer to its collaboration with Customer under this agreement in its marketing materials.

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4. Term & termination

4.1 Unless terminated earlier by Fathom giving the Customer 30 days' notice, this agreement shall continue for a term of 12 months from the Effective Date. Fathom shall be entitled to terminate this agreement immediately upon written notice where the Customer is (or Fathom reasonably believes it to be) in breach of any of its terms.

5. General

5.1 **Assignment and other dealings**. Neither party shall assign, transfer, mortgage, charge, subcontract, declare a trust over or deal in any other manner with any of its rights and obligations under this agreement.

5.2 **Entire Agreement.**

(a) This agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

(b) Each party agrees that it shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this agreement. Each party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misstatement based on any statement in this agreement.

5.3 **Variation**. No variation of this agreement shall be effective unless it is in writing and signed by the parties (or their authorized representatives).

5.4 **Waiver**. No failure or delay by a party to exercise any right or remedy provided under this agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

5.5 **Severance**. If any provision or part-provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of this agreement.

5.6 **Notices**.

(a) Any notice or other communication given to a party under or in connection with this agreement shall be in writing and shall be:

(i) delivered by hand or by pre-paid first-class post or other next working day delivery service at its registered office (if a company) or its principal place of business (in any other case); or

(ii) sent by email to the address specified by each party at the time of entry into this agreement and, in default of such specification, to legal@fathom.global (in the case of Fathom) and

je.sun@utoronto.ca

(in the case of Customer)

(b) Any notice or communication shall be deemed to have been received:

(i) if delivered by hand, on signature of a delivery receipt or at the time the notice is left at the proper address; and

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(ii) if sent by pre-paid first-class post or next working day delivery service, at 9.00 am on the second Business Day after posting or at the time recorded by the delivery service; and

(iii) if sent by email, at the time of transmission, or, if this time falls outside business hours in the place of receipt, when business hours resume. In this clause 4.6(b)(iii), business hours means 9.00am to 5.00pm Monday to Friday on a day that is not a public holiday in the place of receipt.

(c) This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

5.7 The person signing this agreement on behalf of the Customer confirms that he/she is authorized to enter into this agreement on Customer's behalf, and to bind Customer to its terms and conditions.

5.8 No variation of this agreement shall be effective unless it is in writing and signed by or on behalf of both parties.

5.9 **Third party rights.** This agreement does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement.

5.10 **Governing law.** This agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of England and Wales.

5.11 **Jurisdiction.** Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with this agreement or its subject matter or formation.

This agreement has been entered into on the date stated at the beginning of it.

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Signed by

for and on behalf of **SSBN LIMITED**

Signed by

Name Jeffrey Sun

Position Assistant Professor

for and on behalf of University of Toronto

Signed by:
Jeffrey Sun
76A2616903DD4A1...

Schedule 1 – Data

List of Data Provided to Customer

Fathom Product	**Description** *Please include: resolution, peril, return period and time horizon.*	**Region of Interest**
Native resolution water depth data	1 arcsecond, flooding, all return periods and expected dollarized damages, all time periods	48 contiguous US states and DC
na	na	na
na	na	na

Certificate Of Completion

Envelope Id: 6975E7F1-EE29-4BC0-BD37-94311BFF4F25

Status: Sent

Subject: Awaiting signature: Fathom academic licence agreement

Source Envelope:

Document Pages: 7

Signatures: 1

Envelope Originator:

Certificate Pages: 5

Initials: 0

Caroline Iwinski

AutoNav: Enabled

17-18 Berkeley Square

EnvelopeId Stamping: Enabled

Bristol, UK BS8 1HB

Time Zone: (UTC) Dublin, Edinburgh, Lisbon, London

c.iwinski@fathom.global

IP Address: 145.224.201.254

Record Tracking

Status: Original
6/2/2025 12:34:10 PM

Holder: Caroline Iwinski
c.iwinski@fathom.global

Location: DocuSign

Signer Events	Signature	Timestamp
Jeffrey Sun je.sun@utoronto.ca Security Level: Email, Account Authentication (None)	Signed by: Jeffrey Sun 76A2616903DD4A1... Signature Adoption: Pre-selected Style Using IP Address: 104.247.227.205	Sent: 6/2/2025 12:34:35 PM Viewed: 6/2/2025 1:58:18 PM Signed: 6/2/2025 10:59:54 PM
Electronic Record and Signature Disclosure: Accepted: 6/2/2025 1:58:18 PM ID: 5b828318-a72e-4a57-87fe-e236c2c43cc3		
Oliver Wing o.wing@fathom.global Security Level: Email, Account Authentication (None)		Sent: 6/2/2025 10:59:55 PM
Electronic Record and Signature Disclosure: Not Offered via Docusign		

In Person Signer Events	Signature	Timestamp

Editor Delivery Events	Status	Timestamp

Agent Delivery Events	Status	Timestamp

Intermediary Delivery Events	Status	Timestamp

Certified Delivery Events	Status	Timestamp

Carbon Copy Events	Status	Timestamp
Fathom Legal legal@fathom.global Security Level: Email, Account Authentication (None)		
Electronic Record and Signature Disclosure: Not Offered via Docusign		
Joe Bates j.bates@fathom.global Security Level: Email, Account Authentication (None)		
Electronic Record and Signature Disclosure: Not Offered via Docusign		

Witness Events	Signature	Timestamp

Notary Events	Signature	Timestamp

Envelope Summary Events	Status	Timestamps
Envelope Sent	Hashed/Encrypted	6/2/2025 12:34:35 PM
Envelope Updated	Security Checked	6/2/2025 10:59:54 PM

Payment Events	Status	Timestamps

Electronic Record and Signature Disclosure

ELECTRONIC RECORD AND SIGNATURE DISCLOSURE

From time to time, Fathom (we, us or Company) may be required by law to provide to you certain written notices or disclosures. Described below are the terms and conditions for providing to you such notices and disclosures electronically through the DocuSign system. Please read the information below carefully and thoroughly, and if you can access this information electronically to your satisfaction and agree to this Electronic Record and Signature Disclosure (ERSD), please confirm your agreement by selecting the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

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If you decide to receive notices and disclosures from us electronically, you may at any time change your mind and tell us that thereafter you want to receive required notices and disclosures only in paper format. How you must inform us of your decision to receive future notices and disclosure in paper format and withdraw your consent to receive notices and disclosures electronically is described below.

Consequences of changing your mind

If you elect to receive required notices and disclosures only in paper format, it will slow the speed at which we can complete certain steps in transactions with you and delivering services to you because we will need first to send the required notices or disclosures to you in paper format, and then wait until we receive back from you your acknowledgment of your receipt of such paper notices or disclosures. Further, you will no longer be able to use the DocuSign system to receive required notices and consents electronically from us or to sign electronically documents from us.

All notices and disclosures will be sent to you electronically

Unless you tell us otherwise in accordance with the procedures described herein, we will provide electronically to you through the DocuSign system all required notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you during the course of our relationship with you. To reduce the chance of you inadvertently not receiving any notice or disclosure, we prefer to provide all of the required notices and disclosures to you by the same method and to the same address that you have given us. Thus, you can receive all the disclosures and notices electronically or in paper format through the paper mail delivery system. If you do not agree with this process, please let us know as described below. Please also see the paragraph immediately above that describes the consequences of your electing not to receive delivery of the notices and disclosures electronically from us.

How to contact Fathom:

You may contact us to let us know of your changes as to how we may contact you electronically, to request paper copies of certain information from us, and to withdraw your prior consent to receive notices and disclosures electronically as follows:
To contact us by email send messages to: g.lewis@fathom.global

To advise Fathom of your new email address

To let us know of a change in your email address where we should send notices and disclosures electronically to you, you must send an email message to us at g.lewis@fathom.global and in the body of such request you must state: your previous email address, your new email address. We do not require any other information from you to change your email address.

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To request paper copies from Fathom

To request delivery from us of paper copies of the notices and disclosures previously provided by us to you electronically, you must send us an email to g.lewis@fathom.global and in the body of such request you must state your email address, full name, mailing address, and telephone number. We will bill you for any fees at that time, if any.

To withdraw your consent with Fathom

To inform us that you no longer wish to receive future notices and disclosures in electronic format you may:

i. decline to sign a document from within your signing session, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or you may;

ii. send us an email to g.lewis@fathom.global and in the body of such request you must state your email, full name, mailing address, and telephone number. We do not need any other information from you to withdraw consent.. The consequences of your withdrawing consent for online documents will be that transactions may take a longer time to process..

Required hardware and software

The minimum system requirements for using the DocuSign system may change over time. The current system requirements are found here: https://support.docusign.com/guides/signer-guide-signing-system-requirements.

Acknowledging your access and consent to receive and sign documents electronically

To confirm to us that you can access this information electronically, which will be similar to other electronic notices and disclosures that we will provide to you, please confirm that you have read this ERSD, and (i) that you are able to print on paper or electronically save this ERSD for your future reference and access; or (ii) that you are able to email this ERSD to an email address where you will be able to print on paper or save it for your future reference and access. Further, if you consent to receiving notices and disclosures exclusively in electronic format as described herein, then select the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

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- Until or unless you notify Fathom as described above, you consent to receive exclusively through electronic means all notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you by Fathom during the course of your relationship with Fathom.